

Smt Souharda Rudrappa vs Sri Vinay Raj H D on 9 August, 2023

Author: S.G.Pandit

Bench: S.G.Pandit

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NC: 2023:KHC:28678
CP No. 80 of 2023

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 9TH DAY OF AUGUST, 2023

BEFORE

THE HON'BLE MR JUSTICE S.G.PANDIT
CIVIL PETITION NO. 80 OF 2023

BETWEEN:

SMT. SOUHARDA RUDRAPPA
W/O VINAY RAJ
D/O RUDRAPPA K.A.
AGED ABOUT 36 YEARS,
PERMANENTLY R/AT HOSATHOTA ESTATE,
KUNDUR POST, MUDIGERE TALUK,
CHIKKAMAGALURU-577 132.

PRESENTLY R/AT NO.62,
SRI.HARICHARANAM,
60 FEET ROAD, SANJAYANAGAR,
BENGALURU-560094.

...PETITIONER

(BY SRI. SANJAY NAIR, ADV.)

AND:

Digitally signed by

GURURAJ D SRI VINAY RAJ H D

Location: High S/O H.H. DEVARAJ,

Court of Karnataka AGED ABOUT 38 YEARS,

AGRICULTURIST,

R/AT OM SRI NILAYA,

SECTOR 3RD, KALYANAGARA,

3RD PHASE,

BEHIND RURAL POLICE STATION,

CHIKMAGALURU-577 102.

...RESPONDENT

(RESPONDENT SERVED & UNREPRESENTED)

THIS PETITION IS FIELD UNDER SECTION 24 OF THE
CPC, 1908, PRAYING TO A) TRANSFER M.C. NO. 224/2022,

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PENDING ON THE FILE OF THE PRINCIPAL JUDGE FAMILY
COURT AT CHIKMAGALUR, TO THE PRINCIPAL JUDGE FAMILY
COURT AT BENGALURU AND ETC.

THIS PETITION, COMING ON FOR ADMISSION, THIS DAY,
THE COURT MADE THE FOLLOWING:

ORDER

1. This civil petition is filed under Section 24 of CPC with a prayer to transfer M.C.No.224/2022 pending on the file of Principal Judge, Family Court at Chikmagalur to the Principal Judge, Family Court at Bangalore.
2. Heard learned counsel Sri.Sanjay Nair for petitioner and perused the petition papers.
3. Learned counsel for the petitioner would submit that the marriage of the petitioner and respondent was solemnized on 01.10.2017 at Chikmagalur and they lived together as husband and wife at respondent's house, at Chikmagalur till December 2022.
4. Learned counsel for petitioner would submit that while she was residing with her husband/respondent at Chikmagalur, she received divorce notice and thereafter NC: 2023:KHC:28678 she relocated to Bangalore. It is also submitted that the petitioner is working in Cognizant Technology Solutions, at Bangalore since the year June 2021 as Senior Associate. During Covid period she was working from home, from respondent's house at Chikmagalur. It is submitted that the respondent/husband instituted M.C.No.224/2022 under 13(1)(i)(i-a)(i-b) of Hindu Marriage Act, 1955 for a decree of divorce before he Principal Judge, Family Court at Chikmagalur.
5. Learned counsel for the petitioner would submit that since the petitioner is working at Bangalore, it would be difficult and it would cause inconvenience to her to attend divorce proceedings at Chikmagaluru. Learned counsel would further submit that if the petitioner applies leave more often to attend the proceedings at Chikmagalur her employment at Cognizant Technology Solutions would be at stake. It is also submitted that the respondent knowing fully well that the petitioner would not be in a position to attend the proceedings at Chikmagalur, only to harass the NC: 2023:KHC:28678 petitioner, the respondent has initiated proceedings at Chikmagalur. Learned counsel would also submit that the petitioner/wife is residing with her aged parents and she has to look after the aged parents.

6. Learned counsel for the petitioner would contend that while considering petition under Section 24 of CPC for transfer of matrimonial case, the Court shall have to consider the inconvenience that would be caused to the wife along with their standard of life prior to the marriage and subsequent thereto. Learned counsel would submit that the respondent/husband is an agriculturist who owns his own estate and home-stay at Chickmagaluru at Chikmagalur and it would not be difficult for him to travel to Bangalore, if the prayer of the petitioner is allowed.

7. Having heard the learned counsel for the petitioner and on going through the petition papers, I am of the view that the petitioner has not made out a case for transfer of proceedings from Chikmagalur to Bangalore for the present.

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8. The respondent/husband initiated proceedings in M.C. No.224/2022 under Section 13(1) (i) (i-a) (ib) of Hindu Marriage Act for a decree of divorce before the Principal Judge, Family Court at Chikmagalur. The only ground urged for transfer is that the petitioner is working as Senior Associate in Cognizant Technology Solutions at Bangalore and it would be difficult for the petitioner to travel from Bangalore to Chikmagalur. Though the learned counsel for the petitioner submitted that the petitioner's job is at threat due to post-Covid 2019 situation, but no material in that regard is placed on record nor there is pleading to that effect in the petition. Learned counsel for the petitioner also submitted that the petitioner is residing with her parents and she has to look after her parents. In that regard also there is no pleadings in the entire petition. The rental agreement dated 11.01.2023 enclosed to the petition indicates the petitioner as tenant.

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9. The Hon'ble Apex Court in a recent decision reported in 2022 SCC online SC 1199 in the case of N.C.V.AISHWARYA v/s A.S. SARAVANA KARTHIK SHA was considering an appeal arising out of Section 24 of CPC proceedings; at paragraph 9 has observed as follows:

"The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, NC: 2023:KHC:28678 it is the wife's convenience which must be looked at while considering transfer."

10. In the background of above principles if the petitioner's case is examined, the petitioner would not be entitled for prayer as sought in the petition. Admittedly, the petitioner herself has stated that she is working as Senior Associate at Cognizant Technology Solutions at Bangalore and the petition

filed before the Family Court at Chikmagalur discloses that the petitioner is drawing a salary of Rs.1,40,000/- per month. Moreover, petitioner and respondent do not have any issues from their marriage.

11. Transfer of petition under Section 24 of CPC would not be granted for mere asking. It is true that while considering transfer petition under Section 24 of CPC in matrimonial cases, hardship or inconvenience that would be caused to the wife shall have to be considered along with economic and social conditions of the parties. Only because the petitioner is working at Bangalore, it would NC: 2023:KHC:28678 not be a ground to grant transfer. The petitioner is working and she is economically well placed and she has not proved any other inconvenience or difficulty.

12. No ground is made out to entertain the petition and the same is rejected. This order would not be an impediment for filing transfer petition if need be, making out a case for transfer.

Sd/-

JUDGE MPK CT:bms